The Seattle Police Department considers this to be a request for information and not a public disclosure request under RCW 42.56. It is offered as a service to the public and is intended to provide the type of information most frequently requested from SPD.

RECORDS REQUEST RELEASE COPY

Purpose RECORDS REQUEST
Date Released JUN-09-2016 (THU.) 1148
Released By 7959-TRUDEAU, DEBRA

RELEASED TO

Business Name ASS'D COUNSEL FOR ACCUSED
Name REYES RAYMOND
Job Title DEFENSE COUNSEL

Details For Release

RELEASE	GENERAL OFFENSE:RELEASE TRACKING - GO-2016-148053 APR-29-16 VIOL-DV ORDER
RELEASE	PERSON:VICTIM #1 CHARD, DANIELLE C FEMALE
RELEASE	PERSON:SUSPECT #1 NUNO, ELVIS R MALE DEC-23-1984 7323 OLD REDMOND RD
RELEASE	CAD CALL:CLEARED CALL:2016-148053
RELEASE	NARRATIVE TEXT:(L) NARRATIVE NNARRATIVE 2016-04-29 8348
RELEASE	NARRATIVE TEXT:(L) [REPORT SNAPSH REPORT SNAPSHOT 2016-04-29 8348
RELEASE	CLEARANCE BLOCK:STATUS: REFERRED -CITY ATTNY LAW DEPT BY FOLLOW-UP UNIT-SEATTLE POLICE DEPARTMENT 2016-MAY-02

SEATTLE POLICE DEPARTMENT
GENERAL OFFENSE HARDCOPY
(VIOL-DV ORDER)
GO# 2016-148053

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SEATTLE POLICE DEPARTMENT

GENERAL OFFENSE HARDCOPY

RECORDS REQUEST RELEASE COPY

(5016-2 VIOL-DV ORDER)

General Offense Information

Operational Status	REFERRED -CITY ATTNY LAW DEPT BY FOLLOW-UP UNIT
Reported On	APR-29-2016 (FRI.) 1430
Occurred Between	APR-29-2016 (FRI.) 1109 AND APR-29-2016 (FRI.) 1109
Approved On	APR-29-2016 (FRI.)
Approved By	6952 - NICHOLSON, ERIN K
Report Submitted By	8348 - EASTGARD, ERIK L
Org Unit	WEST PCT 2ND W - KING
Address	
Municipality	
	District K **Beat** K1 **Grid** 10445
Bias	-NONE (NO BIAS)
Gang Involvement	UNKNOWN / POSSIBLE
Family Violence	YES

Offenses (Completed/Attempted)

Offense #	1 5016-2 VIOL-DV ORDER - COMPLETED
Location	OTHER/UNKNOWN
Suspected Of Using	NOT APPLICABLE

Related Event(s)

1. CP 2016-148053

Related Person(s)

1. VICTIM # 1 - CHARD, DANIELLE CHRISTINE

Special Notification: **DO NOT DISCLOSE (OFFICER ASKED - PERSON DECLINED)**

CASE SPECIFIC INFORMATION

Sex FEMALE
Race WHITE
Date Of Birth
Address
Municipality
State
ZIP Code
Business
Cellular

PERSON PARTICULARS

Occupation
Employer
Height **Weight**

LINKAGE FACTORS

Resident Status NONRESIDENT
Age Range
Access To Firearm NO
Victim Of 5016- 2 VIOL-DV ORDER - COMPLETED

RELATIONSHIP(S) BETWEEN VICTIM TO OFFENDER(S)

Relationship VICTIM WAS BOYFRIEND/GIRLFRIEND
Offender's Name NUNO, ELVIS R DEC-23-1984 **Offender's Role** SUSPECT #1

2. SUSPECT # 1 - NUNO, ELVIS RYLAND

CASE SPECIFIC INFORMATION

Sex	MALE		
Race	WHITE		
Date Of Birth	DEC-23-1984		
Address	7323 OLD REDMOND RD	**Apartment**	D8
Municipality	REDMOND		
State	WASHINGTON		
ZIP Code	98053-		
Cellular	(425) 260-3853		

PERSON PARTICULARS

Occupation	INFORMATION TEC		
Employer Address	PIONEER SQAURE AREA		
Ethnicity	UNKNOWN		
Height	5'09	**Weight**	150 LBS.
Build	MEDIUM	**Complexion**	FAIR
Eye Color	BROWN		
Hair Color	BROWN		

LINKAGE FACTORS

Resident Status	NONRESIDENT
Age Range	K - 30-49 YEARS
Access To Firearm	NO

Related Text Page(s)

Document NARRATIVE
Author 8348 - EASTGARD, ERIK L
Subject NNARRATIVE
Related Date/Time APR-29-2016 (FRI.) 1508

```
[TT_VERSION 1.0]

                [GENERAL OFFENSE INITIAL INVESTIGATION NARRATIVE  ]

1  BACK-UP OFFICERS(S): (NAMES, SERIAL #'s,  AND ROLES IN INCIDENT)
[
2K02-PT       7632-ATKINSON, MATTHEW T.
                                    ]

2  CHARGES:  [                                                    ]
   CHARGE DESCRIPTION:
[N/A                                                                ]
3  ARREST SCREENED BY:   (SUPERVISOR'S NAME AND SERIAL)
[                                                    ]

4  PHOTO(S) TAKEN?                      [N]
   IF SO,        [  ]UPLOADED TO DEMS, OR          [  ]ICV USED

5  RECORDED STATEMENT(S) TAKEN?         [N]
   IF SO,        [  ]UPLOADED TO DEMS, OR          [  ]ICV USED

6  DIGITAL IN-CAR VIDEO(S) UPLOADED?         [Y]     FLAGGED? [Y]

   IF NO,                [                                         ]

   RECORDING OFFICER(S): [2K12-PT  P   8348-EASTGARD, ERIK L
2K02-PT       7632-ATKINSON, MATTHEW T.
]

7  DNA / FORENSIC EVIDENCE SUBMITTED?        [N  ]

8  FINGERPRINTS:
   FINGERPRINTS SEARCH MADE?                 [N]
   FINGERPRINT EVIDENCE OR CARDS SUBMITTED?  [N  ]
   ANALYSIS REQUEST SUBMITTED?               [N  ]
   COMPARISON REQUEST SUBMITTED?             [N  ]

9  FELONY ALERT PACKET SUBMITTED?            [N  ]
   OFFICER SUBMITTING: [                                           ]
```

FOLLOW-UP UNIT DESTINATION: [ ]

10 USE OF FORCE REPORT SUBMITTED? [N]
USE OF FORCE SCREENED BY (SUPERVISOR'S NAME AND SERIAL):
[ ]

11 LIST ALL HARDCOPY PAPERWORK SUBMITTED:
[ ]ARREST REFERRAL TRACKING SHEET (Crisis Solution Center)
[ ]CRIMINAL TRESPASS WARNING 5.34.1
[ ]DUI PACKET
[ ]DV SUPPLEMENTALS
[ ]IDENTITY and MAIL THEFT (Photocopy of Recovered ID or Mail)
[ ]INVENTORY SEARCH FORM
[ ]MENTAL HEALTH CONTACT REPORT
[ ]PARK EXCLUSION
[ ]TOW IMPOUND RECORD
[ ]VEHICLE REPORT
[ ]WRITTEN STATEMENTS (Required on Felony Arr, Juvenile Crime, DV Incident)
[ ]OTHER (Describe in Box Below)

[N/A]

12 VICTIM(S) INJURIES: SFD Responded? [N]
[N/A]

13 INCIDENTAL PROPERTY DAMAGE: (DESCRIPTION AND VALUE)
[N/A]

14 VEHICLE IMPOUNDED? [N]
STORAGE LOCATION: [ ]

15 INITIAL INCIDENT DESCRIPTION / NARRATIVE:
[ICV WAS RECORDING.
On Friday 4/29/16 at 1350hrs I was working uniform patrol as 2K12 when I was dispatched to an order violation at . Dispatch advised the following: "SEE COMPL REGARDING VIOLATION OF DV NO CONTACT, EXBOYFRIEND MAKING CONTCAT W/COMPL THRU 3RD PARTY, SUSP NOT THERE NOR EXPECTED".

I arrived on scene and spoke with victim/Danielle Chard. She advised her ex-boyfriend, suspect/Elvis Nuno, who she has several no contact and protection orders against, contacted her via email and contacted her sister via text message, violating the orders.

v/Chard has a protection order against s/Nuno out of King County that was served 01/16/2016. v/Chard has a no contact order against s/Nuno out of Seattle Muni Court that was served 03/30/16. v/Chard has a no contact order against s/Nuno out of Snohomish county served on 03/23/16.

v/Chard showed me an email containing a PDF file of a police report. v/Chard advised the email is from s/Nuno. The email was addressed from

elvis.nuno@gmail.com. v/Chard showed me a text message she had gotten from her sister which was a screen shot of a text from a contact header of Elvis Nuno. The contents of the text was a PDF file of police report. The orders state that s/Nuno is restrained from "MAKING ANY COMMUNICATION WITH THE PROTECTED PERSON, INCLUD PERSONAL, WRITTEN, OR PHONE CONTACT, OR THEIR EMPLOYERS EMPLOYEES OR FELLOW WORKERS, OR OTHERS WITH WHOM IT WOULD BE LIKELY TO CAUSE ANNOYANCE/ALARM TO THE VICTIM.".

I provided v/Chard with my business card containing this incident number.
I have nothing further to report.
]

I hereby declare (certify) under penalty of perjury under the laws of the State of Washington that this report is true and correct to the best of my knowledge and belief (RCW 9A.72.085)

Electronically signed:
EASTGARD, ERIK L Date: Apr-29-2016 Place: Seattle, WA

Related Text Page(s)

Document [REPORT SNAPSHOT]
Author 8348 - EASTGARD, ERIK L
Subject REPORT SNAPSHOT
Related Date/Time APR-29-2016 (FRI.) 1510

Textual representation of the officer's MRE report

REPORT INFORMATION
==========
Offense # : 148053
Offense year : 2016
Date occurred : 04-29-2016
Time reported : 1109
Status : O (OPEN)
Family Violence : N
Submitted by : 8348 (EASTGARD, ERIK L (8348))
Date reported : 04-29-2016
Time reported : 1430
Org Unit : B112K (WEST PCT 2ND W - KING)
Location :
Municipality :
County :
Bias : 88 (-NONE (NO BIAS))
Gang involved : U (UNKNOWN / POSSIBLE)

IBR OFFENSE
==========
Offense code : 5016
Offense extension : 2
C/A : C
Offender suspected of using co: N (NOT APPLICABLE)
Location type codes : 25 (OTHER/UNKNOWN)

NARRATIVE TEXT
==========
Subject : NNARRATIVE
Type of text : NT (NARRATIVE)
Author : 8348 (EASTGARD, ERIK L)
Related Date : 04-29-2016
Time : 1508

[TT_VERSION 1.0]

[GENERAL OFFENSE INITIAL INVESTIGATION NARRATIVE]

1 BACK-UP OFFICERS(S): (NAMES, SERIAL #'s, AND ROLES IN INCIDENT)
[
2K02-PT 7632-ATKINSON, MATTHEW T.
]

2 CHARGES: [ ]
CHARGE DESCRIPTION:
[N/A
]

3 ARREST SCREENED BY: (SUPERVISOR'S NAME AND SERIAL)
[ ]

4 PHOTO(S) TAKEN? [N]
IF SO, [ ]UPLOADED TO DEMS, OR [ ]ICV USED

5 RECORDED STATEMENT(S) TAKEN? [N]
IF SO, [ ]UPLOADED TO DEMS, OR [ ]ICV USED

6 DIGITAL IN-CAR VIDEO(S) UPLOADED? [Y] FLAGGED? [Y]

IF NO, [
]
PROVIDE REASON:

RECORDING OFFICER(S): [2K12-PT P 8348-EASTGARD, ERIK L
2K02-PT 7632-ATKINSON, MATTHEW T.
]
NAME(S), SERIAL #'(S)

7 DNA / FORENSIC EVIDENCE SUBMITTED? [N]

8 FINGERPRINTS:
FINGERPRINTS SEARCH MADE? [N]
FINGERPRINT EVIDENCE OR CARDS SUBMITTED? [N]
ANALYSIS REQUEST SUBMITTED? [N]
COMPARISON REQUEST SUBMITTED? [N]

9 FELONY ALERT PACKET SUBMITTED? [N]
OFFICER SUBMITTING: [
]
FOLLOW-UP UNIT DESTINATION: [

]

10 USE OF FORCE REPORT SUBMITTED? [N]
USE OF FORCE SCREENED BY (SUPERVISOR'S NAME AND SERIAL):
[ ]

11 LIST ALL HARDCOPY PAPERWORK SUBMITTED:
[ ]ARREST REFERRAL TRACKING SHEET (Crisis Solution Center)
[ ]CRIMINAL TRESPASS WARNING 5.34.1
[ ]DUI PACKET
[ ]DV SUPPLEMENTALS
[ ]IDENTITY and MAIL THEFT (Photocopy of Recovered ID or Mail)
[ ]INVENTORY SEARCH FORM
[ ]MENTAL HEALTH CONTACT REPORT
[ ]PARK EXCLUSION
[ ]TOW IMPOUND RECORD
[ ]VEHICLE REPORT
[ ]WRITTEN STATEMENTS (Required on Felony Arr, Juvenile Crime, DV Incident)
[ ]OTHER (Describe in Box Below)

[N/A
]

12 VICTIM(S) INJURIES: SFD Responded? [N]
[N/A
]

13 INCIDENTAL PROPERTY DAMAGE: (DESCRIPTION AND VALUE)
[N/A
]

14 VEHICLE IMPOUNDED? [N]
STORAGE LOCATION: [
]

15 INITIAL INCIDENT DESCRIPTION / NARRATIVE:
[ICV WAS RECORDING.
On Friday 4/29/16 at 1350hrs I was working uniform patrol as 2K12 when I was dispatched to an order violation at Dispatch advised the following: "SEE COMPL REGARDING VIOLATION OF DV NO CONTACT, EXBOYFRIEND MAKING CONTCAT W/COMPL THRU 3RD PARTY, SUSP NOT THERE NOR EXPECTED".
I arrived on scene and spoke with victim/Danielle Chard. She advised her ex-boyfriend, suspect/Elvis Nuno, who she has several no contact and protection orders against, contacted her via email and contacted her sister via text message, violating the orders.
v/Chard has a protection order against s/Nuno out of King County that was served

01/16/2016. v/Chard has a no contact order against s/Nuno out of Seattle Muni Court that was served 03/30/16. v/Chard has a no contact order against s/Nuno out of Snohomish county served on 03/23/16.
v/Chard showed me an email containing a PDF file of a police report. v/Chard advised the email is from s/Nuno. The email was addressed from elvis.nuno@gmail.com. v/Chard showed me a text message she had gotten from her sister which was a screen shot of a text from a contact header of Elvis Nuno. The contents of the text was a PDF file of police report. The orders state that s/Nuno is restrained from "MAKING ANY COMMUNICATION WITH THE PROTECTED PERSON, INCLUD PERSONAL, WRITTEN, OR PHONE CONTACT, OR THEIR EMPLOYERS EMPLOYEES OR FELLOW WORKERS, OR OTHERS WITH WHOM IT WOULD BE LIKELY TO CAUSE ANNOYANCE/ALARM TO THE VICTIM.".
I provided v/Chard with my business card containing this incident number.
I have nothing further to report.
]

Location :
Municipality :
County :
X-coordinate :
Y-coordinate :
Longitude :
Latitude :
Latitude-Degrees :
Latitude-Minutes :
Latitude-Seconds :
Latitude-Hemisphere :
Longitude-Degrees :
Longitude-Minutes :
Longitude-Seconds :
Longitude-Hemisphere :

PERSON
==========
Role : 1 (VICTIM)
No : 1
Surname : CHARD
First : DANIELLE
Middle : CHRISTINE
Sex : F
Address :
Apartment Number :
City :

State :
Zip :
DOB :
App. age :
Race : W (WHITE)
Business phone (area code) :
Business phone :
Cell phone (area code) :
Cell phone :
Driver's license :
SOI :
SSN :
Occupation :
Employer :
Emp. Address :
Height :
Weight :

PERSON LINKAGE
==========
Special Notification : N (DO NOT DISCLOSE (OFFICER ASKED - PERSON DECLINED))
Resident status : N (NONRESIDENT)
Age range :
Access to firearms : N

VICTIM REL. LINKAGE FACTORS
==========
Relationship to offender : BG (VICTIM WAS BOYFRIEND/GIRLFRIEND)
Role : 2 (SUSPECT)
: 1

VICTIM OFF. LINKAGE FACTORS
==========
Victim of offense code : 5016
Ext : 2
A/C : C

PERSON
==========
Role : 2 (SUSPECT)
No : 1
Surname : NUNO
First : ELVIS
Middle : RYLAND
Sex : M

Address : 7323 OLD REDMOND RD
Apartment Number : D8
City : REDMOND
State : WA (WA)
Zip : 98053-
DOB : 12-23-1984
App. age : 31
Race : W (WHITE)
Cell phone (area code) : 425
Cell phone : 260-3853
Driver's license : NUNO*ER167R3
SOI : WA (WA)
SSN :
Occupation : INFORMATION TEC
Emp. Address : PIONEER SQAURE AREA
Ethnicity : U (UNKNOWN)
Height : 5'09
Weight : 150
Complexion : FAR (FAIR)
Build : M (MEDIUM)
Hair color : BRO (BROWN)
Eye color : BRO (BROWN)
Remarks :

PERSON LINKAGE
==========
Resident status : N (NONRESIDENT)
Age range : K (K - 30-49 YEARS)
Access to firearms : N

Clearance Information

Agency	SEATTLE POLICE DEPARTMENT
Cleared Status	NOT APPLICABLE - NOT APPLICABLE
Cleared On	MAY-02-2016 (MON.)
Cleared By Officer 1	4383 - MOONEY, JOHN P (FORMER EMPLOYEE)
Org Unit	B721 - DV - DOMESTIC VIOLENCE UNIT
Approved By	4383 - MOONEY, JOHN P (FORMER EMPLOYEE)
Org Unit	B721 - DV - DOMESTIC VIOLENCE UNIT
Complainant/Victim Notified	NO

*** END OF HARDCOPY ***

Edmonds Police Department
Detail

Print Date/Time: 06/16/2016 11:15
Login ID: ep0864
Case Number: 2016-00010299

ORI Number: Edmonds Police Department WA0310200

Case Details:

Case Number: 2016-00010299
Location: 7505 221ST PL SW 7 EDMONDS,WA 98026

Incident Type: Court Order Violation
Occured From: 04/28/2016 14:28
Occured Thru: 04/28/2016 16:25
Reported Date: 04/28/2016 21:03 Thursday

Reporting Officer ID: EP2945-Haughian **Status:** Closed **Status Date:** 05/02/2016
Disposition: Cited **Disposition Date:** 04/29/2016

Case Assignments:

Assigned Officer	Assignment Date/Time	Assignment Type	Assigned By Officer	Due Date/Time
EP1010-Honnen	05/03/2016 00:00	Lead Investigator	EP1104-Richardson	06/03/2016 00:00

Associated Cases **Status** **Assisting ORIs** **Role**

Modus Operandi **Solvability Factors** **Weight**

Offenses

No.	Group/ORI	Crime Code	Statute	Description	Counts
1	State	500	26.50.110.1	DOMESTIC VIOLENCE COURT ORD VIOL KNOWLING VIOLATES ORDER	1

Offense # 1

Group/ORI: State **Crime Code:** 500 **Statute:** 26.50.110.1 **Counts:** 1 **Attempt/ Commit Code:** Commit
Description: DOMESTIC VIOLENCE COURT ORD VIOL KNOWLING VIOLATES ORDER **Offense Date:** 04/28/2016
NCIC Code: 090Z **Scene Code:** Cyberspace **Bias/Motivation:** *None (No Bias)
Domestic Code: Yes
Gang Related: No
IBR Seq. No: 1

Offender Suspected of Using
Alcohol: Unknown
Drugs: Unknown
Computer: Yes

Subjects

Type	No.	Name	Address	Phone	Race	Sex	DOB/Age
Arrestee	1	NUNO, ELVIS R		(425) 802-5237	White	Male	12/23/1984 31
Other Involved	2	UNKNOWN, "STEVE"			Unknown	Male	
Other Involved	1	CHARD, E'LISE			White	Female	
Victim	1	CHARD, DANIELLE C			White	Female	

Edmonds Police Department
Detail

Print Date/Time: 06/16/2016 11:15
Login ID: ep0864
Case Number: 2016-00010299

ORI Number: Edmonds Police Department WA0310200

Subject # 1-Arrestee

Primary: No
Name: NUNO. ELVIS R
Address:

Race: White **Sex:** Male **DOB:** 12/23/1984
Height: 5ft 9 in **Weight:** 150.0 lbs.
Eyes: BRO **Hair:** BRO **Age:** 31

Primary Phone: (425) 802-5237 **State:**
Resident Status: Non-Resident

Related Offenses

Group/ORI	Crime Code	Statute	Description
State	500	26.50.110.1	DOMESTIC VIOLENCE COURT ORD VIOL KNOWLING VIOLATES ORDER

Domestic Violence Referrals: No - DV Form Not Given

Subject # 2-Other Involved

Primary: No
Name: UNKNOWN, "STEVE"

Race: Unknown **Sex:** Male

Subject # 1-Other Involved

Primary: No
Name: CHARD, E'LISE

Race: White **Sex:** Female **DOB:**

Age:

Resident Status: Non-Resident

Domestic Violence Referrals: No - DV Form Not Given

Subject # 1-Victim

Primary: No
Name: CHARD, DANIELLE C
Address:

Victim Type: Individual
Race: White **Sex:** Female **DOB:**
Height: **Weight:**
Eyes: **Hair:** **Age:**

Primary Phone: **State:**
Resident Status: Full-Time Resident

Related Offenses

Group/ORI	Crime Code	Statute	Description
State	500	26.50.110.1	DOMESTIC VIOLENCE COURT ORD VIOL KNOWLING VIOLATES ORDER

Victim/Offender Relationship

Domestic Violence Referrals: Yes - DV Form Delivered

Arrests

Arrest No.	Name	Address	Date/Time	Type	Age
1108A	NUNO, ELVIS R		04/28/2016 21:03	Referred	31

Edmonds Police Department
Detail

Print Date/Time: 06/16/2016 11:15
Login ID: ep0864
Case Number: 2016-00010299

ORI Number: Edmonds Police Department WA0310200

Arrest # 1108 A

Name: NUNO, ELVIS R **Date/Time:** 04/28/2016 21:03 **Type:** Referred
Address: **Race:** White **Sex:** Male **DOB:** 12/23/1984

Height: 5ft 9 in **Weight:** 150.0 lbs.
Eyes: BRO **Hair:** BRO
Phone: (425) 802-5237 **State:** WA

Location:

Age at Arrest: 31 **Resident Status:** Non-Resident
Alcohol Influence: No **Drug Influence:** No **Resisted Arrest:** No

Arresting Officers	Bureau	School Resource Officer	Weapon Codes
EP2945-Haughian		No	Unarmed

Arrest Charges

No.	Group/ORI	Crime Code	Statute	Description
1	State	500	9A.45.80 (B)	WILLFUL VIOLATION OF A COURT ORDER RESTRICT CONTACT

Counts: 1 **Charge Date/Time:** 04/28/2016 21:03 **Attempt/Commit:** Commit
Other ORI: No

Property

Date	Code	Type	Make	Model	Description	Tag No.	Item No.
05/17/2016	Evidence	Digital Media			1 cd, original 5-16-16 email from D. Chard	2016-00010299	1

Seq #1

Tag Number: 2016-00010299 **Item Number:** 1
Property Codes: Evidence **Property Type:** Digital Media **Date Received:** 05/17/2016

Description: 1 cd, original 5-16-16 email from D. Chard

Chain of Custody

Date	Transaction	From	From Role	To	To Role
05/17/2016 06:52	**Type:** Intake **Code:** Initial **Remarks:**	EP1010-David Honnen		EP2720-Darcie Scheele	

Vehicles

No.	Role	Vehicle Type	Year	Make	Model	Color	License Plate	State

Edmonds Police Department
Detail

Print Date/Time: 06/16/2016 11:15
Login ID: ep0864
Case Number: 2016-00010299

ORI Number: Edmonds Police Department WA0310200

- ☐ Liquor Board
- ☐ Dawson Place
- ☐ Juvenile Court
- ☐ Juvenile Prosecutor
- ☐ Mental Health
- ☐ APS
- ☐ District Court
- ☐ Municipal Court
- ☐ DOL
- ☐ CPS
- ☐ Other_____
- ☐ City Attorney
- ☐ County Prosecutor
- ☐ Federal Prosecutor
- ☐ Domestic Violence Unit
- ☐ City Prosecutor
- ☐ Detectives

OfficerID: ep1010, Narrative

05/16/2016 1615 hrs

I received the following email from the victim in this case, Danielle Chard. This should serve as a follow up to her original written statement. The original email was burned to a disc and booked into EPD property.

"Detective Honnen,

Hello. This email is later than I intended it to be, my apologies. Here is the information you requested to go with my reports from 4/21 and 4/28.

On 4/21, I received a text message from my sister, E'Lise Chard. My sister lives in Missoula, Montana. She forwarded me a copy of a text message that had been sent to her boyfriend Stephen Leuchtman, (Stephen lives in Montana too) from Elvis Nuno. Elvis sent a text message to Stephen's phone ( ). The text message read: "Hey! You get a reprieve! And I'll see your girlfriend in cour. And she will NOT like it." Elvis sent this text message from phone number 1.425.802.5237. This phone number has been confirmed to belong to Elvis Nuno by previous police officers and other documentation.

On 4/28, I received a text message from my sister, E'Lise Chard. She forwarded me a copy of a text message that had been send to her boyfirnd Stephen Leuchtman, from Elvid Nuno. Elvis sent three text messages to Stephen's phone (The text messages read: "You tell E'Lise to show the slightest care at the fact her sister is on a self-destructive path and read that god damn police report. That she not remotely car .... And YOU see my "theories" as hard fact written in black and white. If Danielle were about to slit her own wrists do you think E'Lise would even feel anything? Evidence suggests E'Lise would probably push her to do it." Elvis send these text messages from his email account: elvis.nuno@gmail.com <mailto:elvis.nuno@gmail.com>.

On 4/29, I received a text message from my sister, E'Lise Chard, that Elvis sent her a text message that included an attachment of a PDF. He also sent her an email with the PDF as an attachment.
Please let me know if there is anything further that you need or if I need to provide more clarification. If you have any questions, you can respond to this email or please call me at

Cheers,
Danie"

Forward to the Municipal Prosecutor's Office.

Case Closed.

Detective David Honnen, #1010

On the listed date and time I responded to a court order violation at the listed address.

The victim, Chard, called 911 to report that the respondent in a no contact order violation, Nuno, had made contact with her twin sister's boyfriend. Chard's sister was identified only as E'lise. Her boyfriend has only been identified as "Steve". This communication by Nuno to "Steve" is a violation of a no contact order which has been served out of Seattle.

Nuno is the respondent in the order and Chard is the petitioner. The order states explicitly that Nuno is to make no communication with Chard "or others with whom the communication would be likely to cause annoyance or alarm to the victim (Chard)".

According to Chard, Nuno does not know "Steve" and was only able to make contact with him after finding him through social media. Nuno sent two messages to "Steve". Chard emailed me the messages and photos of each are included in this report. Chard told me that she is concerned that Nuno is still trying to reach out to her and her family.

I asked Chard how she knows that the messages came from Nuno. She told me that the email address listed on the message elvis.nuno@gmail.com <mailto:elvis.nuno@gmail.com> is the same address that he has used to contact her in the past.

Based on the messages I viewed on Chard's phone as well as the current no contact order in place between the two prohibiting such communication, I developed probable cause to charge Nuno with violation of a court order.

End.

Officer Nicholas P. Haughian #2945

Quick Property Receipt

Print Date/Time: 05/17/2016 06:55
Login ID: ep1010

Edmonds Police Department
ORI Number: WA0310200

Entry Date/Time	Officer	Case Number	Property Code(s)	Property Type	Description	Facility	Location/Other	Tag/Item Number
05/17/2016 06:52	EP1010 - Honnen	2016-00010299	Evidence	Digital Media	1 cd, original 5-16-16 email from D. Chard	Edmonds Property Room	TEMP Storage	2016-00010299/1

D Honnen
Submitted By

5-17-16
Date

Property Officer

Date

SMC No Contact Order Details

16 10299

16 10299

The City of Seattle, Plaintiff, VS.

ELVIS R NUNO

OCA: 198603
Case: 613225
PIN: 16421346
SMC Defendant No: 1652569
SSN:
DOB: 12/23/1984 S: M R: W
HT: 509 WT: 150 Eyes: BRO

** Domestic Violence **

Order Type: No Contact Order
Expiration Date: 3/28/2018
Served: Y
Victim: DANIELLE CHRISTINCHARD
Brady: Y
Condition: The subject is restrained from making any communication with the protected person, including communication but not limited to, personal, written, or telephone contact, or their employers, employees, fellow workers, or others with whom the communication would be likely to cause annoyance or alarm the victim.
SMC Conditions: POSSESS NO WEAPONS DO NOT COME OR REMAIN WITHIN 500 FEET OF THE PROTECTEDPERSONS RESIDENCE SCHOOL WORKPLACE ANYWHERE PROTECTED PARTY IS

16 10299

FAX COVER SHEET

To:	PD EDMONDS	Fax:	425-771-0208
From:	Data Control Unit - D65	Date:	4-28-16
Phone:	206-296-0970	Fax:	206-296-0160
Re:	PROTECTION ORDER	Pages:	7

☐ Urgent ☐ For Review ☐ Please Comment ☐ Please Reply ☐ Please Recycle

Notes: ATTN: OFC HAUGHIAN

These records were faxed to the King County Sheriff's Office by the Court Clerk. Questions about the current efficacy of the orders should be directed to the appropriate court.

These records are intended for the recipient in the "TO" section above and to no one else. If these records were received in error, contact the listed voice number immediately for instructions.

King County Sheriff
Data Unit
516 3rd Ave Rm. 1A-60
Seattle, WA. 98104

16 10299 5

ISSUED

FILED
2016 JAN 11 PM 12:16
2016 JAN 11 AM 10:38
KING COUNTY
SUPERIOR COURT CLERK
SEATTLE, WA.

FAM 1

Superior Court of Washington For King County

Danielle C Chard 9-23-83
Petitioner (First, Middle, Last Name) DOB

vs.

Elvis R Nuno 12-23-84
Respondent (First, Middle, Last Name) DOB

Order for Protection

No. 15-2-29663-9 SEA

Court Address:
516 Third Ave., Room C203, Seattle, WA 98104

Telephone Number: (206) 296-9100

(Clerk's Action Required) (ORPRT/ORWPNP)

Names of Minors: ☒ No Minors Involved

(List first, middle and last name/s and age/s)

Caution: Access to weapons: ☒ yes ☐ no ☐ unknown

Respondent Identifiers

Sex	Race	Hair
M	W	dk brown
Height	Weight	Eyes
5'10"	180 lbs	brown

Respondent's Distinguishing Features:

The Court Finds Based Upon the Court Record:

The court has jurisdiction over the parties, the minors, and the subject matter. Respondent had reasonable notice and an opportunity to be heard. Notice of this hearing was served on the respondent by ☐ personal service ☐ service by mail pursuant to court order ☐ service by publication pursuant to court order ☒ other 12/24/15 Redmond PD.

☒ Respondent received actual notice of the hearing.

Respondent ☐ was ☒ was not present at the hearing.

This order is issued in accordance with the Full Faith and Credit provisions of VAWA: 18 U.S.C. § 2265.

Respondent's relationship to the victim is:

☐ spouse or former spouse ☒ current or former dating relationship ☐ in-law ☐ parent or child
☐ parent of a child in common ☐ stepparent or stepchild ☐ blood relation other than parent or child
☐ current or former domestic partner ☐ current or former cohabitant as roommate
☒ current or former cohabitant as part of a dating relationship

Respondent committed domestic violence as defined in RCW 26.50.010.

☒ Respondent represents a credible threat to the physical safety of the protected person/s.

Additional findings may be found below. The court concludes that the relief below shall be granted.

Court Order Summary:

☒ Respondent is restrained from committing acts of abuse as listed in provisions 1 and 2, on page 2.
☒ No-contact provisions apply as set forth on the following pages.
☒ Additional provisions are listed on the following pages.

This order is effective immediately and for one year from today's date, unless stated otherwise here (date): January 11, 2021

It is Ordered:

16 10299

☒ 1. Respondent is ***restrained*** from causing physical harm, bodily injury, assault, including sexual assault, and from molesting, harassing, threatening, or stalking ☒ petitioner ☐ the minors named in the table above ☐ these minors only:

(Respondent: If the petitioner is your spouse or former spouse, current or former domestic partner, the parent of a child in common, or a current or former cohabitant as part of a dating relationship, you will not be able to own or possess a firearm, other dangerous weapon, ammunition, or concealed pistol license under state or federal law for the duration of the order.)

☒ 2. Respondent is ***restrained*** from harassing, following, keeping under physical or electronic surveillance, cyberstalking as defined in RCW 9.61.260, and using telephonic, audiovisual, or other electronic means to monitor the actions, locations, or wire or electronic communication of ☒ petitioner ☐ the minors named in the table above ☐ only the minors listed below ☐ members of the victim's household listed below ☐ the victim's adult children listed below:

including by email, text, or social media

☒ 3. Respondent is ***restrained*** from coming near and from having any contact whatsoever, in person or through others, by phone, mail, or any means, directly or indirectly, except for mailing or service of process of court documents by a 3rd party or contact by Respondent's lawyer(s) with ☒ petitioner ☐ the minors named in the table above ☐ these minors only:

If both parties are in the same location, respondent shall leave.

☒ 4. Respondent is ***excluded*** from petitioner's ☒ residence ☒ workplace ☒ school; ☐ the day care or school of ☐ the minors named in the table above ☐ these minors only:

☐ Other

☒ Petitioner's address is confidential. ☐ Petitioner waives confidentiality of the address which is:

☐ 5. Petitioner shall have exclusive right to the residence that petitioner and respondent share. The respondent shall immediately ***vacate*** the residence. The respondent may take respondent's personal clothing and tools of trade from the residence while a law enforcement officer is present.

☐ This address is confidential. ☐ Petitioner waives confidentiality of this address which is:

☒ 6. Respondent is ***prohibited*** from knowingly coming within, or knowingly remaining within 500 ft (distance) of: petitioner's ☒ residence ☒ workplace ☒ school; ☐ the day care or school of ☐ the minors named in the table on page one ☐ these minors only:

☐ Other:

☐ 7. Petitioner shall have possession of essential personal belongings, including the following:

16 10299

☐ 8. Petitioner is granted use of the following vehicle:
Year, Make & Model_____ License No.____

☐ 9. Other:

Protection for minors: This state ☐ has exclusive continuing jurisdiction; ☐ is the home state; ☐ has temporary emergency jurisdiction ☐ that may become final jurisdiction under RCW 26.27.231(2); ☐ other: _____

☐ 10. Petitioner is ***granted*** the temporary care, custody, and control of ☐ the minors named in the table above ☐ these minors only:

☐ The respondent will be allowed visitations as follows:_____

Petitioner may request modification of visitation if respondent fails to comply with treatment or counseling as ordered by the court.

If the person with whom the child resides a majority of the time plans to relocate the child, that person must comply with the notice requirements of the Child Relocation Act. Persons entitled to time with the child under a court order may object to the proposed relocation. See RCW 26.09, RCW 26.10 or RCW 26.26 for more information.

☐ 11. Respondent is ***restrained*** from interfering with petitioner's physical or legal custody of ☐ the minors named in the table above ☐ these minors only:

☐ 12. Respondent is ***restrained*** from removing from the state ☐ the minors named in the table above ☐ these minors only:

Additional requests:

☐ 13. Respondent shall participate in treatment and counseling as follows:
- ☐ domestic violence perpetrator treatment program approved under RCW 26.50.150 or counseling at:_____
- ☐ parenting classes at:_____
- ☐ drug/alcohol treatment at:_____
- ☐ other:

☐ 14. Petitioner is granted judgment against respondent as provided in the Judgment, WPF DV 3.030.

☐ 15. Parties shall return to court on _____, at _____ ____.m. for review.

Protection for pets:

16 10299

☐ 16. Petitioner shall have exclusive custody and control of the following pet(s) owned, possessed, leased, kept, or held by petitioner, respondent, or a minor child residing with either the petitioner or the respondent. (Specify name of pet and type of animal): _____.

☐ 17. Respondent is ***prohibited*** from interfering with the protected person's efforts to remove the pet(s) named above.

☐ 18. Respondent is ***prohibited*** from knowingly coming within, or knowingly remaining within _____ (distance) of the following locations where the pet(s) are regularly found:

☐ petitioner's residence (You have a right to keep your residential address confidential.)

☐ _____ Park

☐ other: _____

☒ **Prohibit Weapons and Order Surrender**

The Respondent must:

- not obtain or possess any firearms, other dangerous weapons, or concealed pistol license; and
- turn in any firearms, other dangerous weapons, and concealed pistol license as stated in the *Order to Surrender Weapons* filed separately.

Findings – The court *(check all that apply)*:

☒ must issue the above orders and an *Order to Surrender Weapons* because:

☒ the first restraint provision is ordered above, and the court found on page one that the Respondent had *actual notice*, represented a *credible threat*, and was an *intimate partner*.

☐ the court finds by clear and convincing evidence that the restrained person has:

☐ used, displayed, or threatened to use a firearm or other dangerous weapon in a felony; or

☐ previously committed an offense making him or her ineligible to possess a firearm under RCW 9.41.040.

☐ may issue the above orders and an *Order to Surrender Weapons* because the court finds by a preponderance of evidence, the Respondent:

☐ presents a serious and imminent threat to public health or safety, or the health or safety of any individual by possessing a firearm or other dangerous weapon; or

☐ has used, displayed or threatened to use a firearm or other dangerous weapon in a felony; or

☐ previously committed an offense making him or her ineligible to possess a firearm under RCW 9.41.040.

Warnings to the Respondent: A violation of provisions 1 through 6 of this order with actual notice of its terms is a criminal offense under chapter 26.50 RCW and will subject you to arrest. If the violation of the protection order involves travel across a state line or the boundary of a tribal jurisdiction, or involves conduct within the special maritime and territorial jurisdiction of the United States, which includes tribal lands, you may be subject to criminal prosecution in federal court under 18 U.S.C. §§ 2261, 2261A, or 2262.

A violation of provisions 1 through 6, 17, or 18 of this order is a gross misdemeanor unless one of the

16 10299

following conditions apply: Any assault that is a violation of this order and that does not amount to assault in the first degree or second degree under RCW 9A.36.011 or 9A.36.021 is a class C felony. Any conduct in violation of this order that is reckless and creates a substantial risk of death or serious physical injury to another person is a class C felony. Also, a violation of this order is a class C felony if you have at least two previous convictions for violating a protection order issued under Titles 7, 10, 26 or 74 RCW.

If your relationship to the victim is as intimate partner, then effective immediately, and continuing as long as this protection order is in effect, you may not possess a firearm or ammunition under federal law. 18 U.S.C. § 922(g)(8). A violation of this federal firearms law carries a maximum possible penalty of 10 years in prison and a $250,000 fine.

If you are convicted of an offense of domestic violence, you will be forbidden for life from possessing a firearm or ammunition. 18 U.S.C. § 922(g)(9); RCW 9.41.040.

You Can Be Arrested Even if the Person or Persons Who Obtained the Order Invite or Allow You to Violate the Order's Prohibitions. You have the sole responsibility to avoid or refrain from violating the order's provisions. Only the court can change the order upon written application.

Pursuant to 18 U.S.C. § 2265, a court in any of the 50 states, the District of Columbia, Puerto Rico, any United States territory, and any tribal land within the United States shall accord full faith and credit to the order.

Washington Crime Information Center (WACIC) Data Entry

It is further ordered that the clerk of the court shall forward a copy of this order on or before the next judicial day to King ☒ County Sheriff's Office or ☐ City Police Department, *where petitioner lives*, which shall enter it into WACIC.

Service

☒ The clerk of the court shall also forward a copy of this order on or before the next judicial day to Redmond ☐ County Sheriff's Office or ☒ City Police Department, *where respondent lives*, which shall personally serve the respondent with a copy of this order and shall promptly complete and return to this court proof of service.

☐ Petitioner shall serve this order by ☐ mail ☐ publication.

☐ Petitioner shall make private arrangements for service of this order.

☐ Respondent appeared and was informed of the order by the court; further service is not required.

Law Enforcement Assistance

☐ Law enforcement shall assist petitioner in obtaining:

- ☐ Possession of petitioner's ☐ residence ☐ personal belongings located at: ☐ the shared residence ☐ respondent's residence ☐ other: _____
- ☐ Custody of the above-named minors, including taking physical custody for delivery to petitioner.
- ☐ Possession of the vehicle designated in paragraph 7, above.
- ☐ Other: _____

☐ Other: _____

This order is in effect until the expiration date on page one.

If the duration of this order exceeds one year, the court finds that an order of one year or less will be insufficient to prevent further acts of domestic violence.

Other: _____

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Dated: 1/11/2016 at 9:54 a.m./p.m.

Judge/Commissioner
Melinda Johnson-Taylor

I acknowledge receipt of a copy of this Order:

DID NOT APPEAR

Signature of Respondent/Lawyer WSBA No. Print Name

Signature of Petitioner/Lawyer WSBA No. Print Name Danielle Chard

Petitioner or Petitioner's Lawyer must complete a Law Enforcement Information Sheet (LEIS).

expires 3/23/2021

EDMONDS MUNICIPAL COURT

I, THE UNDERSIGNED CLERK OF THE COURT FOR EDMONDS MUNICIPAL COURT, SNOHOMISH COUNTY, STATE OF WASHINGTON, HEREBY CERTIFY THAT THIS IS A FULL AND TRUE COPY OF THE ORIGINAL ON FILE IN THE COURT, AND THAT I AM THE CUSTODIAN OF THE ORIGINAL RECORD.

16-0299

CLERK OF THE COURT

Edmonds Municipal Court
250 5th Avenue North
Edmonds, WA 98020
(425) 771-0210

ENTRY # DVO- 16-059

DATE RCVD 3/23/16

SERVED by

SERVED BY EMC

State of Washington
Snohomish County
City of Edmonds, Plaintiff,

vs.

NUNO, ELVIS RYLAND
Defendant.

No. 5212319876

☐ Pre-Trial ☒ Post Conviction

☐ Replacement Order (paragraph 10)

Domestic Violence No-Contact Order

(clj=NOCON, Superior cts =ORNC)

Clerk's action required: Para 9

No-Contact Order

1. **Protected Person's Identifiers**

Danielle C Chard
Name (First, Middle, Last)

9-23-83 F W
DOB Gender Race

If a minor, use initials instead of name, and complete a Law Enforcement Information Sheet (LEIS).

Defendant's Identifiers

Date of Birth	
12-23-84	
Gender	Race
M	W

2. **Defendant**
   A. do not cause, attempt, or threaten to cause bodily injury to, assault, sexually assault, harass, stalk, or keep under surveillance the protected person.
   B. do not contact the protected person, directly, indirectly, in person or through others, by phone, mail or electronic means, except for mailing or service of process of court documents through a third party, or contact by the defendant's lawyers.
   C. do not knowingly enter, remain, or come within _____ (1,000 feet if no distance entered) of the protected person's residence, school, workplace, other:_____.
   D. other: _____

3. **Firearms and Weapons, Defendant**
   ☒ do not obtain or possess a firearm, other dangerous weapon or concealed pistol license. (Pre-Trial, RCW 9.41.800. See findings in paragraph 7, below.)
   ☒ do not obtain, own, possess or control a firearm. (Post Conviction or Pre-Trial, RCW 9.41.040.)
   ☒ shall **immediately surrender** all firearms and other dangerous weapons within the defendant's possession or control and any concealed pistol license to the following law enforcement agency: _____. (Pre-Trial Order, RCW 9.41.800.)

4. **This no-contact order expires on:** March 23, 2021. Five years from today if no date is entered.

Warning: Violation of the provisions of this order with actual notice of its terms is a criminal offense under chapter 26.50 RCW and will subject a violator to arrest; any assault, drive-by shooting, or reckless endangerment that is a violation of this order is a felony. **You can be arrested even if the person protected by this order invites or allows you to violate the order's prohibitions.** You have the sole responsibility to avoid or refrain from violating the order's provisions. Only the court can change the order upon written application. (Additional warnings on page 2 of this order.)

16 10299

Findings of Fact

5. Based upon the record both written and oral, the court finds that the defendant has been charged with, arrested for, or convicted of a domestic violence offense, and the court issues this Domestic Violence No-Contact Order under chapter 10.99 RCW to prevent possible recurrence of violence.

6. The court further finds that the defendant's relationship to a person protected by this order is an ☒ Intimate partner (former/current spouse; parent of common child; or former/current cohabitants as intimate partners) or ☐ Other family member as defined by Ch. 10.99 RCW: _____.

7. ☐ (Pretrial Order) For crimes not defined as a serious offense, the court makes the following mandatory findings pursuant to RCW 9.41.800: ☐ The defendant used, displayed, or threatened to use a firearm or other dangerous weapon in a felony. ☐ The defendant is ineligible to possess a firearm due to a prior conviction pursuant to RCW 9.41.040; or ☐ Possession of a firearm or other dangerous weapon by the defendant presents a serious and imminent threat to public health or safety, or to the health or safety of any individual.

Additional Warnings to Defendant: This order does not modify or terminate any order entered in any other case. The defendant is still required to comply with other orders.

Willful violation of this order is punishable under RCW 26.50.110. State and federal firearm restrictions apply. 18 U.S.C. § 922(g)(8)(9); RCW 9.41.040.

Pursuant to 18 U.S.C. § 2265, a court in any of the 50 states, the District of Columbia, Puerto Rico, any United States territory, and any tribal land within the United States shall accord full faith and credit to the order.

Additional Orders

8. ☐ Civil standby: The appropriate law enforcement agency shall, at a reasonable time and for a reasonable duration, assist the defendant in obtaining personal belongings located at:

_____.

9. The clerk of the court shall forward a copy of this order on or before the next judicial day to: _____ ☐ County Sheriff's Office ☐ Police Department where the case is filed, which shall enter it in a computer-based criminal intelligence system available in this state used by law enforcement to list outstanding warrants.

10. ☒ This order replaces all prior no-contact orders protecting the same person issued under this cause number.

Dated: March 23, 2016 ☒ in open court with the defendant present.

Cheryl L Beyer
Judge/ Pro Tem/Court Commissioner

I acknowledge receipt of a copy of this order:

_____
Defendant

The protected person shall be provided with a certified copy of this order.

I am a certified or registered interpreter or found by the court to be qualified to interpret in the _____ language, which the defendant understands. I translated this order for the defendant from English into that language.

Signed at (city) _____, (state) _____, on (date) _____.

Interpreter: _____ print name: _____

03/23/2016 WED 12:38 PolCanonC3325 001

****
*** TX REPORT ***
****

16 10299

JOB NO.	1372
ST. TIME	03/23 12:36
SHEETS	3
FILE NAME	
TX INCOMPLETE	-----
TRANSACTION OK	94257753977 SNOCOM
ERROR	-----

Edmonds Municipal Court
250 5th Avenue North
Edmonds, WA 98020
(425) 771-0210

EDMONDS MUNICIPAL COURT
I, THE UNDERSIGNED CLERK OF THE COURT FOR EDMONDS MUNICIPAL COURT, SNOHOMISH COUNTY, STATE OF WASHINGTON, HEREBY CERTIFY THAT THIS IS A FULL AND TRUE COPY OF THE ORIGINAL ON FILE IN THE COURT, AND THAT I AM THE CUSTODIAN OF THE ORIGINAL RECORD.
CLERK OF THE COURT

State of Washington
Snohomish County
City of Edmonds
Plaintiff,

vs.

NUNO, ELVIS RAMIRO
Defendant.

No. 5-21231987-6

☐ Pre-Trial ☒ Post Conviction

☐ Replacement Order (paragraph 10)

Domestic Violence No-Contact Order
(clj=NOCON, Superior cts =ORNC)
Clerk's action required: Para 9

No-Contact Order

1. **Protected Person's Identifiers**

Danielle C. Chard
Name (First, Middle, Last)

9-23-83 F W
DOB Gender Race

If a minor, use initials instead of name, and complete a Law Enforcement Information Sheet (LEIS).

Defendant's Identifiers

Date of Birth	
12-23-84	
Gender	Race
M	W

2. **Defendant**
   A. do not cause, attempt, or threaten to cause bodily injury to, assault, sexually assault, harass, stalk, or keep under surveillance the protected person.
   B. do not contact the protected person, directly, indirectly, in person or through others, by phone, mail or electronic means, except for mailing or service of process of court documents through a third party, or contact by the defendant's lawyers.
   C. do not knowingly enter, remain, or come within _____ (1,000 feet if no distance entered) of the protected person's residence, school, workplace, other:_____.
   D. other: _____
   _____.

3. **Firearms and Weapons, Defendant**
   ☒ do not obtain or possess a firearm, other dangerous weapon or concealed pistol license. (Pre-Trial, RCW 9.41.800. See findings in paragraph 7, below.)
   ☒ do not obtain, own, possess or control a firearm. (Post Conviction or Pre-Trial, RCW 9.41.040.)
   ☒ shall **immediately surrender** all firearms and other dangerous weapons within the defendant's possession or control and any concealed pistol license to the following law enforcement agency: _____. (Pre-Trial Order, RCW 9.41.800.)

Case # 16-10299

EDMONDS POLICE DEPARTMENT
250 5TH AVENUE NORTH
EDMONDS, WA 98020

INCIDENT STATEMENT FORM

Name Chard (Last) Danielle (First) C (Middle Initial) Date of Birth ___ mm ___ dd ___ yyyy

Address ___ Number ___ Street ___ City ___ St ___ Zip

Res. Phone ___ Work Phone (___) ___ Other (___) ___

Email Address ___

The following is my voluntary statement regarding this police report:

There are three current protection orders in place on my behalf against Elvis R. Nuno. Two from King County and one from Snohomish County. Today, April 28th, Elvis sent my sister's (E'Lise Chard) boyfriend (Steve) two text messages. One reported "You tell E'Lise to show the slightest care at the fact ~~that~~ error her sister is on a self-destructive path and read that god damn police report. That she not remotely car". This message was sent at 16:25. The second text message stated "And YOU can see my "theories" as hard fact written in black and white. If Danielle were about to slit her own wrists do you think E'Lise would even feel anything? Evidence suggests E'Lise would probably push her to do it". This message was sent @ 14:28. Elvis is currently on probation and is not to have contact with me or anyone who knows me for any reason.

For Burglaries, Thefts and Vehicle Theft reports:
☐ I did not give anyone permission to enter my premises and/or take/remove my property/vehicle.

Making false reports to public officers:
A person commits the crime of making a false report if he/she willfully makes any untrue, misleading or exaggerated statement in any report to a Police or Fire Department. Making a false report is a misdemeanor.

I certify (or declare) under penalty of perjury, under the laws of the State of Washington, the above statement is true and correct.

SIGNATURE [signature] Date 4/28/16 Location Edmonds

Signature Witness 2945 Date 4/29/16

Page 1 of 1

EPD 112 Rev 11/2015

16-1299

Back elvis.nuno@gmail.com Details

not remotely car

And YOU can see my "theories" as hard fact written in black and white.

If Danielle were about to slit her own wrists do you think E'Lise would even feel anything?

Evidence suggests E'Lise would probably push her to do it.

The sender is not in your contact list.
Report Junk

16-10299

Back elvis.nuno@gmail.com Details

Text Message
Today 4:25 PM

You tell E'Lise to show the slightest care at the fact her sister is on a self-destructive path and read that god damn police report. That she not remotely car

CITATION # 6Z0240512 EDP CN

CRIMINAL ☐ TRAFFIC ☑ NON-TRAFFIC L.E.A. ORI #: WA0310200 COURT ORI #: WA031021J 6Z0240512 REPORT #: 16-10299

IN THE ☐ DISTRICT ☑ MUNICIPAL COURT OF EDMONDS MUNICIPAL COURT
☐ STATE OF WASHINGTON ☐ COUNTY OF ☑ CITY/TOWN OF EDMONDS PLAINTIFF VS. NAMED DEFENDANT

THE UNDERSIGNED CERTIFIES AND SAYS THAT IN THE STATE OF WASHINGTON

DRIVER'S LICENSE NO.	STATE	EXPIRES	PHOTO ID MATCHED	NAME: LAST	FIRST	MIDDLE	SFX	CDL/CLP
NUNO*ER167R3	WA	12-23-16	☑ YES ☐ NO	NUNO	ELVIS	R		☐ YES ☑ NO

ADDRESS 7323 OLD REDMOND ROAD D8 ☐ IF NEW ADDRESS CITY REDMOND STATE WA ZIP CODE 98052

EMPLOYER EMPLOYER LOCATION

DATE OF BIRTH	RACE	SEX	HEIGHT	WEIGHT	EYES	HAIR	RESIDENTIAL PHONE NO.	CELL/PAGER PHONE NO.	WORK PHONE NO.
12-23-84	W	M	5'09"	150	BLK	BRO			

VIOLATION DATE ON OR ABOUT 04/28/2016 21:03 ☐ INTERPRETER NEEDED LANG. AT LOCATION REF. TRAFFICWAY 221ST PL SW M.P. BLOCK # 7505 CITY/COUNTY OF EDMONDS/SNOHOMISH

DID OPERATE THE FOLLOWING VEHICLE/MOTOR VEHICLE ON A PUBLIC HIGHWAY AND

VEH LIC NO	STATE	EXPIRES	VEH YR	MAKE	MODEL	STYLE	COLOR

TR #1 LIC NO	STATE	EXPIRES	TR YR	TR #2 LIC NO	STATE	EXPIRES	TR YR

OWNER/COMPANY IF OTHER THAN DRIVER

ADDRESS	CITY	STATE	ZIP CODE

ACCIDENT	BAC	COMMERCIAL VEHICLE	☐ YES ☐ NO	16+ PASS	☐ YES ☐ NO	HAZMAT	☐ YES ☐ NO	EXEMPT VEHICLE	☐ FIRE ☐ LEA

DID THEN AND THERE COMMIT EACH OF THE FOLLOWING OFFENSES

1. VIOLATION/STATUTE CODE 26.50.110.1 EMC 5.34.030 ☐ D V NO CONTACT/PROTECTION ORDER VIOL
2. VIOLATION/STATUTE CODE ☐ D V
3. VIOLATION/STATUTE CODE ☐ D V
4. VIOLATION/STATUTE CODE ☐ D V
5. VIOLATION/STATUTE CODE ☐ D V

RELATED # DATE ISSUED 04-29-16

MANDATORY COURT APPEARANCE APPEARANCE DATE TIME

☐ TICKET SERVED ON VIOLATOR ☑ TICKET REFERRED TO PROSECUTOR
☐ TICKET SENT TO COURT FOR MAILING ☐ BOOKED

DRAFT

CRIMINAL CITATION

You are charged with the crime(s) described on this form. You must respond to the court below.

EDMONDS MUNICIPAL COURT
250 5TH AVE N.

EDMONDS WA 98020

Court Contact Info:
Phone 1: (425)771-0210
Email: edmcourt@edmondswa.gov

Traffic citations may go on your driving record.

IF YOU DO NOT APPEAR this may result in a warrant for your arrest and detention in jail. Also, if "Traffic" is checked you may lose your driver's license/privilege.

I CERTIFY UNDER PENALTY OF PERJURY UNDER THE LAWS OF THE STATE OF WASHINGTON THAT I HAVE ISSUED THIS ON THE DATE AND AT THE LOCATION ABOVE, THAT I HAVE PROBABLE CAUSE TO BELIEVE THE ABOVE NAMED PERSON COMMITTED THE ABOVE OFFENSE(S), AND I AM ENTERING MY AUTHORIZED USER ID AND PASSWORD TO AUTHENTICATE IT.

OFFICER NICHOLAS HAUGHIAN # 2945
OFFICER #

MANDATORY APPEARANCE

One of the following options applies:
1. If there is a date in the appearance date box you must appear in court at that date and time.
2. If there is a number in the appearance date box you must appear in court within the number of days indicated.
3. If the appearance date box is blank ,the court will notify you in writing when to appear. If you do not receive a notice within fifteen (15) days please contact the court immediately.

When you appear, you will be advised of your constitutional rights and the possible penalties if you are convicted. You also may be asked to enter a plea of NOT GUILTY or GUILTY.

IF RCW LISTED APPEARS BELOW PLEASE READ

RCW 46.61.502 Driving Under the Influence (DUI)
drive a motor vehicle and either: have a 0.08 or higher breath or blood alcohol concentration or THC concentration of 5.00 or higher within 2 hours after driving or be under the influence of or affected by liquor, marijuana, or any drug, or a combination of liquor, marijuana, and any drug.

RCW 46.20.342(1)(a) First Degree Driving While Suspended/Revoked (DWLS)
be an habitual traffic offender and drive a motor vehicle while an order of revocation issued under chapter 46.65 RCW prohibiting such operation is in effect.

RCW 46.20.342(1)(b) Second Degree Driving While Suspended/Revoked (DWLS)
drive a motor vehicle while an order of suspension or revocation prohibiting such operation is in effect, and not be eligible to reinstate the license or driving privilege.

RCW 46.20.342(1)(c) Third Degree Driving While Suspended/Revoked (DWLS)
drive a motor vehicle while the license or privilege to drive is suspended or revoked for (1) failure to furnish proof of satisfactory progress in a required alcoholism or drug treatment program, or (2) failure to furnish proof of financial responsibility pursuant to chapter 46.29 RCW; or (3) failure to comply with chapter 46.29 RCW relating to uninsured accidents; or (4) failure to respond to a notice of traffic infraction, failure to appear at a requested hearing, violation of a written promise to appear in court, or failure to comply with the terms of a notice of traffic infraction or citation; or (5) suspension or revocation in another state that would not result in suspension or revocation in this state; or (6) failure to reinstate the driver's license or privilege after suspension or revocation in the second degree; or (7) the person has a suspension under RCW 46.20.267 relating to intermediate driver's licenses, or any combination of the above.

NUNO, ELVIS R 122384

Edmonds Police Department
Detail

Print Date/Time: 06/16/2016 11:12
Login ID: ep0864
Case Number: 2016-00009660

ORI Number: Edmonds Police Department WA0310200

Case Details:

Case Number: 2016-00009660
Location:

Incident Type: Domestic - No Assault
Occured From: 04/09/2016 12:00
Occured Thru: 04/09/2016 22:00
Reported Date: 04/21/2016 18:04 Thursday

Reporting Officer ID: EP2899-Gagner **Status:** Inactive **Status Date:** 04/25/2016
Disposition: No Further Leads **Disposition Date:** 04/25/2016
Assigned Bureau: Domestic Violence Unit

Assigned Officer	Assignment Date/Time	Assignment Type	Assigned By Officer	Due Date/Time

Associated Cases	Status	Assisting ORIs	Role

Modus Operandi	Solvability Factors	Weight

Offenses

No.	Group/ORI	Crime Code	Statute	Description	Counts

Subjects

Type	No.	Name	Address	Phone	Race	Sex	DOB/Age
Other Involved	1	NUNO, ELVIS R		(425) 802-5237	White	Male	12/23/1984 31
Reporting Party	1	CHARD, DANIELLE C			White	Female	

Subject # 1-Other Involved

Primary: No
Name: NUNO, ELVIS R
Address:

Race: White **Sex:** Male **DOB:** 12/23/1984
Height: 5ft 9 in **Weight:** 150.0 lbs.
Eyes: BRO **Hair:** BRO **Age:** 31

Primary Phone: (425) 802-5237 **State:**
Resident Status: Non-Resident

Domestic Violence Referrals: No - DV Form Not Given

Subject # 1-Reporting Party

Primary: No
Name: CHARD, DANIELLE C
Address:

Race: White **Sex:** Female **DOB:**
Height: **Weight:**
Eyes: **Hair:** **Age:**

Primary Phone: **State:**
Resident Status: Full-Time Resident

Domestic Violence Referrals: Yes - DV Form Delivered

Arrests

Arrest No.	Name	Address	Date/Time	Type	Age

Edmonds Police Department
Detail

Print Date/Time: 06/16/2016 11:12
Login ID: ep0864
Case Number: 2016-00009660

ORI Number: Edmonds Police Department WA0310200

Property

Date	Code	Type	Make	Model	Description	Tag No.	Item No.

Vehicles

No.	Role	Vehicle Type	Year	Make	Model	Color	License Plate	State

Routing:

- ☐ Liquor Board
- ☐ Dawson Place
- ☐ Juvenile Court
- ☐ Juvenile Prosecutor
- ☐ Mental Health
- ☐ APS
- ☐ District Court
- ☐ Municipal Court
- ☐ DOL
- ☐ CPS
- ☐ Other_____
- ☐ City Attorney
- ☐ County Prosecutor
- ☐ Federal Prosecutor
- ☐ Domestic Violence Unit
- ☐ City Prosecutor
- ☐ Detectives

On 04/21/2016 at 1931 I was dispatched to 7505 221 ST PL SW #7, where Chard, Danielle had requested information regarding a court protection order that she had between her and Nuno, Elvis. This address is in the City of Edmonds, Snohomish County.

When I arrived on scene I contacted Chard who informed me that during the day of 04/09/2016 Nuno had contacted her sister's boyfriend via text stating, "Hey! You get a reprieve! And I'll see your girlfriend in court. And she will NOT like it". Chard's sister stated to her that Nuno had also contacted on of her sister's work colleagues and asked about information pertaining to Chard. He reportedly asked about a burn that Chard had sustained in 2012 and stated to the work colleague of Chard's sister that he believes that Chard is conducting daily background checks on him.

I confirmed that there is an active order of protection in place between Chard and Nuno, however, since Nuno did not attempt to contact Chard or have another party contact her on his behalf, there was no violation of the order.

Chard stated that Nuno's behavior has been increasingly strange and erratic since he had been arrest in December of 2015 for assault 4 DV, stalking and a court order violation. While he will not wilfully break the order between them, Chard feels like he will contact people she knows in order to intimidate her.

I provided her with a domestic resource pamphlet and took a statement from Chard for further evidence of Chard's erratic behavior for future court proceedings.

End.

Gagner, Samuel G #2899

Case # 16-9660

EDMONDS POLICE DEPARTMENT
250 5TH AVENUE NORTH
EDMONDS, WA 98020

INCIDENT STATEMENT FORM

Name Chard (Last) Danielle (First) C (Middle Initial) Date of Birth ___ mm ___ dd ___ yyyy

Address ___ Number ___ Street ___ City ___ St ___ Zip

Res. Phone ___ Work Phone ___ Other ( ) ___

Email Address ___

The following is my voluntary statement regarding this police report:

There is a Civil protection order and a criminal protection order currently against Elvis Nuno, on my behalf. On April 9th, Elvis sent my sister's boyfriend a text message that read "Hey! You get a reprieve! And I'll see your girlfriend in court. And she will NOT like it" My sister also reported to me that Elvis reached out to her colleague Rebecca to ask about information pertaining to me. Specifically he wanted information about a burn that I got on my leg from a motorcycle exhaust in 2012. He also reported to Rebecca that he believes that I am conducting daily background checks on him. Both of these reports are abnormal and random.

For Burglaries, Thefts and Vehicle Theft reports:
☐ I did not give anyone permission to enter my premises and/or take/remove my property/vehicle.

Making false reports to public officers:
A person commits the crime of making a false report if he/she willfully makes any untrue, misleading or exaggerated statement in any report to a Police or Fire Department. Making a false report is a misdemeanor.

I certify (or declare) under penalty of perjury, under the laws of the State of Washington, the above statement is true and correct.

SIGNATURE Danielle Chard Date 4/21/16 Location Edmonds

Signature Witness [signature] Date 04/21/16

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EPD 112 Rev 11/2015